

#	Case Name	Tentative Ruling
101	Batra v. Regents, 2026-01564048	DEMURRER – CONTINUED
102	Capers v. ESP Holdings, 2026-01537790	DEMURRER – CONTINUED
103	Carpenter v. Frey, 2026-01544571	DEMURRER – SUSTAINED IN PART AND OVERRULED IN PART MOTION TO STRIKE - DENIED Plaintiffs sued Defendant for causes of action related to the alleged lack of habitability of the home they rented from her, especially with regard to mold. Defendant demurs to the third, fifth, seventh and eighth causes of action, and moves to strike the punitive damages allegations and claim for relief. <u>Third Cause of Action – Breach of Contract</u> “If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written instrument must be attached and incorporated by reference.” (Otworth v. Southern Pac. Transportation Co. (1985) 166 Cal.App.3d 452, 459.) Here, Plaintiff has not attached the written contract or sufficient set forth the terms verbatim in the body of the complaint. The Demurrer is SUSTAINED WITH 20 DAYS LEAVE TO AMEND as to the third cause of action for breach of contract. <u>Fifth Cause of Action – IIED, Seventh Cause of Action – Fraudulent Concealment, Eighth Cause of Action – Intentional Misrepresentation</u> The Demurrer is OVERRULED as to these causes of action. The Court finds that the Complaint sufficiently states a claim for intentional infliction of emotional distress because the complaint alleges that Defendant